

CITY OF MANCHESTER, NEW HAMPSHIRE
ZONING BOARD OF ADJUSTMENT

In re Case No. ZBA2026-063 — 26 Titus Avenue (Tax Map 554, Lot 17C)

R-1B Zoning District, Ward 9

MOTION FOR REHEARING

Pursuant to RSA 677:2

NOW COME Nickolas J. Levasseur and Alison Famisan-Levasseur of 30 Mystic Street, Manchester, New Hampshire 03103 [and the abutters identified in Exhibit A,] and respectfully move that this Board grant a rehearing of its decision of September 10, 2026 granting the variances requested in the above-captioned case. In support of this motion, and in satisfaction of RSA 677:2, the Movants set forth below every ground upon which it is claimed that the decision is unlawful or unreasonable.

I. STANDING AND TIMELINESS

1. The Movants own and reside at 30 Mystic Street, Manchester. Their property [abuts / lies within 200 feet of] the subject parcel and they are abutters within the meaning of RSA 672:3. They appeared and gave testimony in opposition at the public hearing on September 10, 2026. They are persons directly affected by the decision within the meaning of RSA 677:2.
2. The Board rendered its decision on September 10, 2026. This motion is filed within thirty days of that decision and is therefore timely under RSA 677:2. The Movants note that as of the date of filing the City has published neither minutes nor a notice of decision for the September 10, 2026 meeting, and that the Movants have not been served with any written decision.
3. The Movants set forth each ground fully and separately below, mindful that under RSA 677:3, I, no ground not set forth in this motion may later be urged upon appeal.

II. THE DECISION COMPLAINED OF

4. The applicant, T & L 2018, LLC, by its agent Doug MacGuire, P.E., of The Dubai Group, Inc., sought relief to construct two townhouse buildings containing thirteen multifamily dwelling units on a lot having 49,484 square feet of buildable area where 78,000 square feet is required for the use proposed.
5. On September 10, 2026 the Board granted relief from six sections of the Land Use Code: §4.3-A.1.C (Multifamily Dwellings); §8.1.2 (Planned Development Lot Area); §5.3.1.E (Townhouse Building Type — Districts Permitted); §5.3.1.E.5.B (Maximum Height in Stories); §5.3.1.E.5.C (Maximum Height in Feet); and §8.7.2.F.2 (Parking Location for Planned Developments). The vote was four to one, Member Carnevale dissenting. No condition was attached to the grant.

III. THE GOVERNING STANDARD

6. A variance may be granted only upon affirmative findings on all five criteria of RSA 674:33, I(a)(2)(A) through (E). The burden of proof on every criterion rests upon the applicant, and upon the applicant alone. *Harrington v. Town of Warner*, 152 N.H. 74, 78 (2005). A failure of proof on any one criterion requires denial.
7. A board's findings must rest upon evidence in the record and not upon the personal opinion or private knowledge of its members. *Condos East Corp. v. Town of Conway*, 132 N.H. 431, 434 (1989).
8. "Unnecessary hardship" under RSA 674:33, I(b) requires special conditions of *the property* that distinguish it from other properties in the area. Conditions personal to the owner, and the owner's preferred or more profitable use, are not special conditions of the land. *Bacon v. Town of Enfield*, 150 N.H. 468, 471 (2004); *Olszak v. Town of New Hampton*, 139 N.H. 723, 726 (1995).

IV. GROUNDS FOR REHEARING

Ground 1. The applicant offered no evidence whatever on RSA 674:33, I(a)(2)(D), and the Board nonetheless found the criterion satisfied.

9. Member Carnevale asked the applicant directly whether it had obtained a broker price opinion to support its assertion that surrounding property values would not be diminished. The applicant's engineer answered: "so no, we did not," and offered to obtain one if the Board wished. The Board did not ask him to do so.

10. The applicant produced no appraisal, no market study, no comparable sale, and no opinion of any person qualified to give one. Its written submission on this criterion consists of two assertions: that there is "ample buffering," and that the project "would not negatively affect surrounding existing properties."

11. The buffer relied upon is approximately 130 to 135 feet of woods lying upon the rear yards of the Mystic Street owners, land the applicant does not own. The applicant's own engineer conceded on the record that those owners "have the right to develop that or expand that or cut that." A buffer upon a neighbor's land, removable at that neighbor's will, is neither a condition of the subject property nor evidence that values will be preserved.

12. The burden on this criterion was the applicant's. *Harrington*, 152 N.H. at 78. It was not carried. It was not partially carried. On this record there was no evidence before the Board upon which the finding required by RSA 674:33, I(a)(2)(D) could rest, and the decision is therefore unlawful and unreasonable.

Ground 2. The only evidence supporting the property-value finding was supplied from the bench by a member of the Board.

13. Approximately eight minutes after the applicant conceded it had obtained no broker opinion, Vice Chair St. Pierre stated, in the course of reciting the findings of fact:

"Also, I am a real estate broker, and I'm not aware of any circumstance where a development of this nature in Manchester has diminished a property around it. I've never seen a report or evidence of that. In general, reasonably well thought out development increases values."

14. This statement was not evidence. It was not offered under oath, the Movants had no opportunity to cross-examine it, no opposing opinion could be offered in response, and it rested upon the member's professional standing and private experience rather than upon anything in the record. A board's decision must rest upon more than the personal opinion of its members. *Condos East*, 132 N.H. at 434.

15. The vice of this is not merely that opinion substituted for evidence. It is that a member supplied the very proof the applicant had conceded, minutes earlier, that it did not have — and then voted upon the sufficiency of what he had supplied. The applicant's burden was not met on this criterion. It was relieved.

16. The Movants respectfully submit that the Board should consider whether a member who furnishes the only evidence on a contested criterion may also sit in judgment upon that evidence, and should at minimum revisit the finding on RSA 674:33, I(a)(2)(D) upon evidence properly in the record.

Ground 3. No special condition of the property was identified, and the hardship claim is contradicted by the applicant's own sealed exhibit.

17. The applicant's written memorandum states that the parcel "can support five (5) single family home lots meeting the underlying zoning." Its By-Right Subdivision Plan, submitted with the application, depicts five conforming lots, each having more than the 6,000 square feet of buildable area the ordinance requires.

18. At the hearing the applicant told the Board the opposite. Its engineer asked: "If you could have nine single family homes here by right and you can't get more than one or two, is that a reasonable use of the property?" Its principal stated: "the hardship is the steep slopes. We can't essentially build the houses."

19. No drawing, grading analysis, soils report, or cost estimate was offered in support of the oral claim. Minutes earlier the same engineer had conceded that the arithmetic runs the other way: “this lot would support more than what we’re showing here, just physically based on buildable area divided by 6,000.”

20. The Board was asked to disbelieve the applicant’s own stamped plan upon the applicant’s unsupported say-so, and did so. A finding of unnecessary hardship that rests upon an assertion the applicant’s own submitted exhibit refutes is unreasonable.

21. Further, the only physical feature identified — slope — is not a special condition distinguishing this parcel. The City’s Zoning Review deducted 10,922 square feet of slope from 60,406 square feet gross, leaving 49,484 square feet of buildable area. That is the ordinance operating as written. It leaves more than eight times the 6,000 square feet the ordinance requires per planned-development unit. A deduction that leaves a parcel abundantly buildable is not a hardship arising from special conditions of the land within the meaning of RSA 674:33, I(b). *Bacon*, 150 N.H. at 471.

22. What the applicant in truth advanced was that a conforming five-lot subdivision would be less profitable or less convenient than thirteen townhouse units. That is not unnecessary hardship. *Olszak*, 139 N.H. at 726. The applicant acquired the parcel as vacant land at public auction in 2024, a circumstance the Board may weigh. *Hill v. Town of Chester*, 146 N.H. 291, 294 (2001).

Ground 4. Findings of fact recited in support of the decision are contradicted by testimony given at the same hearing.

23. The findings state that the plan “reduces the need for curb cuts on Calef Road and preserves existing on street parking.” Two witnesses had told the Board there is no on-street parking on Calef Road to preserve. Kate Markey: “Anything south of that, you’ll notice if you drive there, there’s big no parking signs.” Jennifer Allard: “No one can park on Calef. You’re not allowed to park on Calef.”

24. The findings credit the applicant with the twenty-five foot buffer on the paper street. Jennifer Allard had testified: “I actually got a lawyer and went to court and we won our half of the street. They didn’t give us a half of the street. We won our half.”

25. The findings recite that the area contains “several other mixed or high density uses including the large development to the south, the cemetery and the Zion School.” A cemetery is not a high density use, and the applicant’s own engineer had told the Board of it that “obviously no homes or anything will be built really in that area.”

26. The findings rely upon an “enforced buffer” and upon “additional buffers... beyond what the plan development requires.” No landscape plan or buffer design was submitted with the application. The City’s Zoning Review records a Type 2 buffer as “Can comply,” which states a possibility and not a proposal.

27. Findings that are contradicted by the only testimony on the point, or that rest upon submissions not in the file, cannot support the decision they were given to justify.

Ground 5. The relief granted exceeds what the ordinance’s own planned-development standard permits, and that standard was never addressed.

28. Section 8.1.2 requires 6,000 square feet of lot area per planned-development unit. Upon 49,484 square feet of buildable area, that standard yields **eight units**. Thirteen were granted.

29. Neither the applicant nor the Board addressed §8.1.2 on the record. The applicant argued instead from the standards of the R-M district, under which it asserted seventeen units would be permitted, and from the heights allowed for townhouses in districts where townhouses are permitted. This parcel lies in neither. An argument that a parcel should be governed by the standards of a different district is an argument for reclassification under RSA 675, a legislative act of the Board of Mayor and Aldermen. It is not a ground for a variance, and this Board has no jurisdiction to grant it.

Ground 6. The variances are contrary to the public interest and violate the spirit of the ordinance, RSA 674:33, I(a)(2)(A) and (B).

30. The stated intent of the R-1B district under Table 3.3-A of the Land Use Code is “to maintain higher-density neighborhoods of single-family, detached dwellings.” The applicant quoted the first half of that sentence and omitted the operative half.

31. The findings describe the area as a “transitional area.” That is not a designation this parcel carries. Table 3.3-A assigns the transitional role to the R-2 district, which “forms a loose band around the more densely developed areas of the City, transitioning between mixed-use centers and the lower densities of the single-family districts.” Deciding the case as though the parcel were in R-2 applies the wrong district’s purpose.

32. Granting a use the district does not permit, in a building type the district does not permit, at a density twice what the planned-development standard allows, upon a lot with 63% of the required area, alters the essential character of the locality and conflicts with the ordinance’s basic objectives to a marked degree.

Ground 7. Substantial justice was not weighed, RSA 674:33, I(a)(2)(C).

33. The applicant’s entire written showing on this criterion is that “[t]he benefits to the applicant in constructing residential which is far more conducive to the property provides substantial justice.” The governing question is whether any loss to the individual is outweighed by a gain to the general public. The applicant weighed only its own benefit, which is the one interest this criterion does not measure. The showing is also self-defeating: on the applicant’s own plan the parcel yields five conforming lots, so there is no loss to weigh.

Ground 8. Preserved: the Board applied a different standard to comparable applications heard the same evening.

34. The Movants state this ground to preserve it under RSA 677:3, I, and do not urge it as the principal basis for rehearing.

35. In Case No. ZBA2026-078 (26 Sullivan Street), heard the same evening, the Board declined to vote upon requested variances because an elevation on the applicant’s plan set was mislabeled, a member stating that he was “not comfortable voting on anything that’s been represented here on paper” and “not comfortable... granting variances on something that’s incomplete.” The case was continued. In the present case the applicant’s oral hardship claim was contradicted by its own sealed subdivision plan, and no continuance was sought or granted.

36. In Case No. ZBA2026-080 (374 Thornton Street), also heard the same evening, the same slope provision reduced a parcel to 1,812 square feet of buildable area out of 13,955 square feet gross — a deduction of 87% — and relief was required because the remainder fell below the minimum. Here the deduction was 18% and left 49,484 square feet. The applicant in that case stated in its written narrative that “[t]he intent of the steep slope section of the ordinance is to prevent creating lots that cannot be built on.”

37. The Board conditioned its grants that evening in cases far smaller than this one, including hours of illumination for signage and vegetative screening of retaining walls. The present grant, the largest of the evening, carries no condition of any kind.

V. THE RECORD

38. The Movants incorporate by reference the complete case file in ZBA2026-063, including the application, the Zoning Review, the By-Right Subdivision Plan, the applicant’s memorandum of May 20, 2026, and the City’s audio and video recording of the public hearing of September 10, 2026. Quotations above are drawn from that recording. The Movants have requested the recording and the written decision under RSA 91-A and reserve the right to supplement this motion upon their production.

VI. RELIEF REQUESTED

WHEREFORE, the Movants respectfully request that this Board:

A. Grant a rehearing of its decision of September 10, 2026 in Case No. ZBA2026-063;

B. Upon rehearing, require the applicant to carry its burden on each of the five criteria of RSA 674:33, I(a)(2), and in particular to produce competent evidence on the effect of the proposal upon surrounding property values;

C. Require that any finding of unnecessary hardship identify the special condition of the property relied upon, and reconcile that finding with the applicant's own By-Right Subdivision Plan;

D. Address §8.1.2 of the Land Use Code and state the basis for any relief exceeding eight dwelling units;

E. Consider whether a member who supplied the only evidence upon a contested criterion should participate in the reconsideration of that finding; and

F. Grant such further relief as is just.

Respectfully submitted,

Nickolas J. Levasseur

Alison Famisan-Levasseur

30 Mystic Street, Manchester, NH 03103

30 Mystic Street, Manchester, NH 03103

Dated: [REDACTED], 2026

CERTIFICATE OF SERVICE

I certify that on [REDACTED], 2026 a copy of the foregoing was delivered to the Manchester Planning and Community Development Department, One City Hall Plaza, Manchester, New Hampshire 03101, and served upon the applicant T & L 2018, LLC and its agent The Dubay Group, Inc., 136 Harvey Road, Building B101, Londonderry, New Hampshire 03053, by [first class mail / hand delivery].

Nickolas J. Levasseur

Highlighted bracketed text marks a blank to be completed before filing. Quotations are taken from a machine transcript of the City's recording and should be verified against that recording before this motion is filed. This document was prepared by the Movants and is not legal advice; the Movants may wish to have counsel review it before filing.